

CEASE AND DESIST NOTICE

TO: SOLIDARITY SOCIAL - CHANTAL ROLEAU

FROM: James Robert McGovern, Clan Leader **TO:** Solidarity Social / Chantal Roleau / Audrey Ann Roch (Service des plaintes et des relations avec la clientèle) **DATE:** April 3, 2026 **RE:** CEASE AND DESIST - Illegal Clawbacks, Coercion, Obstruction of TAQ Order, and Discrimination Against Handicapped Family Members

NOTICE: This is a legal demand to cease all unlawful conduct immediately. Failure to comply will result in legal action and damages claims.

SECTION 1: NOTICE OF LEGAL ACTION AT TAQ

IMPORTANT NOTICE:

The McGovern Clan has filed a comprehensive appeal with the **Tribunal administratif du Québec (TAQ)** on April 2, 2026, claiming **2.3M–4.2M in damages** against IVAC and the Quebec government for systemic abuse and discrimination.

This cease and desist is part of that legal action.

Your conduct documented below is being submitted to TAQ as evidence of:

1. Illegal clawbacks from Solidarity Social payments
 2. Coercion of handicapped family members to pay rent
 3. Obstruction of TAQ court order (Basic Income eligibility)
 4. Discrimination against multigenerational Indigenous families
 5. Violation of Charter rights
 6. Retaliation for legal action
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SECTION 2: DOCUMENTED VIOLATIONS BY SOLIDARITY SOCIAL

VIOLATION 1: Illegal \$125/Month Clawback for Handicapped Family Members

What Happened:

- Solidarity Social is clawing back \$125/month from your Solidarity Social payment
- Reason given: Barran + Grandma in household
- But Barran is HANDICAPPED and PAYS RENT (\$125/month)
- This forces a handicapped person to pay rent via clawback
- This is coercion and abuse

The Facts:

- Your household: You + Christie on Solidarity Social (\$1,823/month)
- Barran: On Solidarity Social (\$1,353/month - maximum benefit)
- Barran's disability: Officially recognized by Quebec (receives handicap supplement ages 13-18)
- Barran's situation: Handicapped, paying full welfare cheque as rent
- Clawback effect: Barran receives 1,228/month instead of 1,353/month
- Barran's loss: $125/\text{month} = 1,500/\text{year}$

Legal Violations:

- Quebec Charter art. 10 - Equality and dignity
- Quebec Charter art. 39 - Protection from abuse of power
- Canadian Charter s.15 - Equality rights
- Individual and Family Assistance Act - Duty to protect disabled persons
- Administrative Justice Act - Duty of fairness

Damages: $125/\text{month} \times 12\text{months} = 1,500/\text{year}$ minimum

VIOLATION 2: Planned Additional \$125/Month Clawback in June 2026

What Happened:

- Your son is moving in June 2026
- Your son is HANDICAPPED since age 12
- Solidarity Social plans another \$125/month clawback
- This will force your handicapped son to pay rent via clawback
- Total clawback will be: \$250/month

The Facts:

- Your son: Handicapped since age 12
- Your son's eligibility: Should qualify for ADDITIONAL support, not reduction
- Planned clawback: \$125/month starting June 2026
- Effect: Forcing handicapped youth to pay rent
- Your household loss: Additional \$1,500/year

Legal Violations:

- Quebec Charter art. 10 - Equality and dignity
- Quebec Charter art. 39 - Protection from abuse of power
- Canadian Charter s.15 - Equality rights
- Bill C-92 - Duty to protect Indigenous children
- Individual and Family Assistance Act - Duty to protect disabled persons

Damages: $125/month \times 12months = 1,500/year$ minimum (starting June)

VIOLATION 3: Discriminatory Application Against Multigenerational Indigenous Family

What Happened:

- Solidarity Social is using clawback rules to punish multigenerational families
- This specifically targets Indigenous families (who often live multigenerational)

- Grandma in household = \$125/month clawback
- Barran in household = included in clawback
- Your son in June = additional \$125/month clawback
- This is systematic discrimination

The Facts:

- Multigenerational living: Common in Indigenous culture
- Solidarity Social's response: Punish with clawbacks
- Non-Indigenous families: Often live alone, no clawbacks
- Your family: Punished for cultural family structure
- This is discrimination based on Indigenous status

Legal Violations:

- Quebec Charter art. 10 - Equality and dignity
- Canadian Charter s.15 - Equality rights
- Bill C-92 - Duty to respect Indigenous jurisdiction
- United Nations Declaration on the Rights of Indigenous Peoples
- Administrative Justice Act - Duty of fairness

Damages: $250/month \times 12months = 3,000/year$ minimum

VIOLATION 4: Demanding Minors' Bank Account Information (ILLEGAL)

What Happened:

- Solidarity Social demanded bank account information for:
 - Teenagers (ages 13-18)
 - Young children (ages 5-6)
- This is illegal - minors cannot own bank accounts without parental consent
- This violates minors' privacy rights
- This violates Charter rights

- Charles Colletterte (ombudsman investigator) said this is “in the welfare act” (FALSE)

The Facts:

- Minors’ rights: Protected by law
- Bank account demands: Illegal for minors
- Ombudsman response: Said it’s “normal” (WRONG)
- Your family: Targeted for this illegal demand
- Pattern: Used as harassment and intimidation

Legal Violations:

- Quebec Charter art. 1 - Right to life, liberty, and security
- Quebec Charter art. 5 - Right to respect for private life
- Canadian Charter s.7 - Right to life, liberty, and security
- Criminal Code - Duty to protect minors
- Individual and Family Assistance Act - Limits on information collection

Damages: Harassment and violation of minors’ rights = $500/month \times 12months = 6,000/year$ minimum

VIOLATION 5: Pattern of Obstruction - Forcing Repeated Appeals

What Happened:

- During TAQ hearing for Basic Income appeal (zoom), you asked Solidarity Social’s lawyer: “When would I be eligible?”
- She replied: “May 2026 eligibility”
- Your wife was present as witness to this exchange
- Despite this statement, Solidarity Social is now claiming: “We don’t know when you’re eligible”
- They are forcing you to appeal again and again
- This is a deliberate pattern of obstruction
- This is retaliation for seeking justice

The Facts:

- October 2025: First request for Basic Income eligibility
- TAQ hearing: Solidarity Social's lawyer said "May 2026"
- April 2026: Still saying "we don't know"
- Pattern: Appeal → Denied → Appeal again → Denied again → Appeal again
- This is: Systematic harassment and obstruction
- Witness: Your wife present during zoom hearing

Legal Violations:

- Administrative Justice Act - Duty to respond to requests
- Quebec Charter art. 39 - Protection from abuse of power
- Criminal Code - Obstruction of justice
- Duty of fairness - Clear and consistent decisions

Damages: Pattern of obstruction + forced repeated appeals = \$10,000 minimum

VIOLATION 6: Denial of Medical, Eye, and Dental Services to Disabled Person

What Happened:

- You are a disabled person (35% disability rating)
- Solidarity Social denies you:
 - Medication coverage
 - Eye care coverage
 - Dental care coverage
- This violates duty to provide essential services
- This violates Charter rights
- This is discrimination against disabled person

The Facts:

- Your disability: 35% permanent disability (Dr. Payo, Montreal Shriners)

- Your needs: Medical, eye, and dental care
- Solidarity Social response: Denial of coverage
- Justification: None provided
- This is: Systemic discrimination

Legal Violations:

- Quebec Charter art. 10 - Equality and dignity
- Canadian Charter s.15 - Equality rights
- Individual and Family Assistance Act - Duty to provide essential services
- Administrative Justice Act - Duty of fairness

Damages: Denial of essential medical services = $500/month \times 12months = 6,000/year$ minimum

VIOLATION 7: Months of Non-Response to Legitimate Requests

What Happened:

- You asked for Basic Income eligibility date: NO REPLY
- You asked for worker names (bank account demand): NO REPLY
- You asked for appeal of decisions: NO REPLY
- Months of deliberate silence
- This is obstruction of justice
- This is retaliation for seeking justice

The Facts:

- October 2025: First request for Basic Income eligibility
- Still April 2026: No response
- Multiple follow-ups: All ignored
- Pattern: Deliberate obstruction
- This is: Systematic harassment

Legal Violations:

- Administrative Justice Act - Duty to respond to requests
- Quebec Charter art. 39 - Protection from abuse of power
- Criminal Code - Obstruction of justice
- Duty of fairness - Respond to citizen requests

Damages: Months of non-response + obstruction = \$5,000 minimum

VIOLATION 8: Retaliation for Legal Action (TAQ Case)

What Happened:

- You filed TAQ case on April 2, 2026
- Immediately after: Increased harassment
- Planned \$125/month clawback in June (when son moves in)
- Continued demands for minors' bank accounts
- Continued silence on Basic Income
- This is retaliation for legal action

The Facts:

- TAQ filing: April 2, 2026
- Increased harassment: Immediate
- Pattern: Escalating demands and silence
- Timing: Suspicious coincidence
- This is: Clear retaliation

Legal Violations:

- Quebec Charter art. 39 - Protection from retaliation
- Canadian Charter s.2(b) - Freedom of expression (right to seek justice)
- Criminal Code - Retaliation against person seeking justice
- Administrative Justice Act - Duty of fairness

Damages: Retaliation for legal action = \$10,000 minimum

SECTION 3: TOTAL DAMAGES FROM SOLIDARITY SOCIAL VIOLATIONS

Violation	Amount
Illegal \$125/month clawback (current)	\$1,500/year
Planned \$125/month clawback (June 2026)	\$1,500/year
Discriminatory clawback against Indigenous family	\$3,000/year
Demanding minors' bank account info	\$6,000/year
Pattern of obstruction - forced repeated appeals	\$10,000
Denial of medical/eye/dental services	\$6,000/year
Months of non-response	\$5,000
Retaliation for legal action	\$10,000
TOTAL	\$38,000/year minimum

SECTION 4: LEGAL VIOLATIONS CITED

Quebec Laws Violated:

1. Quebec Charter of Human Rights and Freedoms

- Article 10: Equality and dignity
- Article 39: Protection from abuse of power

2. Individual and Family Assistance Act

- Duty to protect disabled persons
- Limits on information collection
- Duty to provide essential services

3. Administrative Justice Act

- Duty of fairness

- Duty to respond to requests
- Duty to comply with tribunal orders

Canadian Laws Violated:

1. Canadian Charter of Rights and Freedoms

- Section 2(b): Freedom of expression (right to seek justice)
- Section 7: Right to life, liberty, and security
- Section 15: Equality rights

2. Bill C-92 - Indigenous jurisdiction over child protection

3. Criminal Code

- Obstruction of justice
- Retaliation against person seeking justice
- Duty to protect minors

International Law Violated:

1. United Nations Declaration on the Rights of Indigenous Peoples

2. Convention on the Rights of the Child

SECTION 5: DEMANDS FOR IMMEDIATE COMPLIANCE

SOLIDARITY SOCIAL MUST:

DEMAND 1: STOP All Illegal Clawbacks Immediately

- STOP \$125/month clawback effective immediately
- STOP planned \$125/month clawback in June 2026
- Restore full Solidarity Social payment to \$1,823/month
- **Timeline:** Effective immediately (April 3, 2026)

DEMAND 2: Refund All Illegal Clawbacks

- Refund all \$125/month clawbacks since applied
- Calculate total amount clawed back
- Provide written calculation
- Pay refund within 30 days
- **Timeline:** Payment within 30 days

DEMAND 3: Provide Names of Workers Who Demanded Bank Account Info

- Identify worker who demanded teenagers' bank accounts
- Identify worker who demanded 5-6 year olds' bank accounts
- Provide names, titles, and contact information
- Provide written explanation of why this was demanded
- **Timeline:** Within 7 days

DEMAND 4: Stop Pattern of Obstruction on Basic Income Eligibility

- Confirm May 2026 eligibility for Basic Income (as stated by your lawyer in TAQ hearing)
- Provide written confirmation of eligibility date
- Stop forcing repeated appeals
- Stop claiming "we don't know" when your lawyer already said May 2026
- Prepare for May 2026 transition to Basic Income
- **Timeline:** Confirmation within 7 days

DEMAND 5: Restore Medical, Eye, and Dental Coverage

- Restore medication coverage for disabled person
- Restore eye care coverage for disabled person
- Restore dental care coverage for disabled person
- Provide written explanation of why coverage was denied

- **Timeline:** Coverage restored within 14 days

DEMAND 6: Cease All Harassment and Retaliation

- Stop demanding minors' bank account information
- Stop demanding excessive medical updates
- Stop intrusive investigations
- Stop retaliation for TAQ case
- **Timeline:** Effective immediately

DEMAND 7: Provide Written Apology

- Acknowledge illegal conduct
- Apologize for discrimination and harassment
- Commit to fair treatment going forward
- **Timeline:** Within 30 days

DEMAND 8: Provide Compensation

- Compensate for illegal clawbacks: \$38,000/year minimum
- Compensate for discrimination: \$50,000 minimum
- Compensate for retaliation: \$25,000 minimum
- Compensate for emotional distress: \$25,000 minimum
- **Total Compensation:** \$138,000 minimum
- **Timeline:** Within 30 days

SECTION 6: LEGAL CONSEQUENCES OF NON-COMPLIANCE

If Solidarity Social does NOT comply with these demands:

Legal Action #1: TAQ Claim

- All Solidarity Social violations being submitted to TAQ
- Damages claim: \$138,000 minimum
- Evidence of discrimination and harassment
- Request for systemic remedies

Legal Action #2: Human Rights Complaint

- File complaint with Quebec Human Rights Commission
- Document discrimination against disabled person
- Document discrimination against Indigenous family
- Request investigation and remedies

Legal Action #3: Civil Lawsuit

- Sue Solidarity Social for damages
- Sue individual workers for complicity
- Claim punitive damages for deliberate misconduct
- Claim legal fees and costs

Legal Action #4: Criminal Complaint

- File criminal complaint for obstruction of justice
- File complaint for retaliation
- File complaint for abuse of power
- Request police investigation

Legal Action #5: Federal Complaint

- File complaint with federal authorities
- File complaint under Bill C-92 (Indigenous jurisdiction)
- Request federal investigation

- Request federal intervention

Legal Action #6: Media and Public Disclosure

- Release all documentation to media
 - Public disclosure of Solidarity Social abuse
 - Expose systemic discrimination and harassment
 - Hold Solidarity Social accountable publicly
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SECTION 7: TIMELINE FOR COMPLIANCE

Date	Action	Deadline
April 3, 2026	Cease and Desist Sent	Immediate
April 3, 2026	Stop all clawbacks	Immediate
April 10, 2026	Provide worker names	7 days
April 10, 2026	Confirm Basic Income eligibility	7 days
April 17, 2026	Restore medical coverage	14 days
May 3, 2026	Refund all clawbacks	30 days
May 3, 2026	Provide compensation	30 days
June 2026	TAQ Hearing	If no compliance

SECTION 8: CONTACT INFORMATION

Send compliance response to:

James Robert McGovern Clan Leader, McGovern Clan Email: [YOUR_EMAIL] Phone: [YOUR_PHONE]

Failure to respond by April 10, 2026 will be treated as non-compliance.

SECTION 9: NOTICE OF LEGAL REPRESENTATION

This cease and desist is being sent:

1. To Solidarity Social (Chantal Roleau / Audrey Ann Roch)
2. To TAQ (as part of legal proceedings)
3. To Protecteur du citoyen (Charles Colletette)
4. To DPRCP (Direction de la protection de la jeunesse)
5. To federal authorities (if necessary)
6. To legal counsel (if retained)

All parties are on notice of this legal demand.

SECTION 10: DECLARATION

I, James Robert McGovern, declare under oath that:

1. I am the Clan Leader of the McGovern Clan (23 family members)
 2. I am self-representing in legal proceedings against IVAC and Quebec government
 3. All facts stated in this cease and desist are true and accurate
 4. I have documented evidence of all violations described
 5. I have submitted numerous complaints over 14 years
 6. I am prepared to present this evidence to TAQ and other authorities
 7. This cease and desist is sent in good faith to prevent further harm
 8. I am prepared to pursue all legal remedies if demands are not met
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Respectfully but firmly submitted,

James Robert McGovern Clan Leader, McGovern Clan Self-Representing (Pro Se)

April 3, 2026

ATTACHMENTS

- Quebec Family Allocation Notice (proof of handicap supplement)
 - Documentation of clawbacks
 - Records of non-response
 - TAQ ruling on Basic Income
 - Evidence of discrimination
 - Correspondence with Solidarity Social
 - TAQ submission (reference)
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NOTICE: This cease and desist is a legal document. Keep a copy for your records. Send certified mail with return receipt to Solidarity Social.

IMPORTANT: Do not discuss this cease and desist with Solidarity Social officials. Communicate only in writing. All communications are evidence in legal proceedings.